



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

JUL 1 2003

DOT-E 13248
(FIRST REVISION)

EXPIRATION DATE: December 31, 2003

1. GRANTEE: The Dow Chemical Company
Midland, Michigan
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the transportation in commerce of glutaraldehyde solution using an alternative shipping description. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.101(c) in that an alternative shipping name may not be used, except as provided herein, and 172.301(c) in that the exemption number need not be marked on the package.
5. BASIS: This emergency exemption is based on the application of The Dow Chemical Company, dated May 15, 2003, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant economic loss and additional information dated June 27, 2003.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):**JUL 1 2003**

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identification Number	Packing Group
Corrosive liquid, acidic, organic, n.o.s. (contains glutaraldehyde)	8	UN3265	II

7. SAFETY CONTROL MEASURES:

- a. PACKAGING - Prescribed packagings must be as authorized by the HMR.
- b. OPERATIONAL CONTROLS - Each non-bulk packaging must be labeled with the TOXIC label in addition to any other required labels.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.
- b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.
- c. The marking requirements of § 172.301(c) are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel and cargo aircraft only.10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle and cargo vessel used to transport packages covered by this exemption. The shipper must furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:

for 
Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

7/1/2003
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, 400 Seventh Street, SW, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.
PO: LaValle